

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1005

Introduced by Clouse, 37; Hallstrom, 1.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Rules of the Road; to amend
- 2 section 60-6,356, Revised Statutes Supplement, 2025; to provide for
- 3 the operation of all-terrain vehicles and utility-type vehicles
- 4 between sunset and sunrise as prescribed; and to repeal the original
- 5 section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 60-6,356, Revised Statutes Supplement, 2025, is
2 amended to read:

3 60-6,356 (1) An all-terrain vehicle or a utility-type vehicle shall
4 not be operated on any controlled-access highway with more than two
5 marked traffic lanes. The crossing of any controlled-access highway with
6 more than two marked traffic lanes shall not be permitted except as
7 provided in subsections (9) and (10) of this section. Subsections (2),
8 (3), and (5) through (8) of this section authorize and apply to operation
9 of an all-terrain vehicle or a utility-type vehicle only on a highway
10 other than a controlled-access highway with more than two marked traffic
11 lanes.

12 (2) An all-terrain vehicle or a utility-type vehicle may be operated
13 in accordance with the operating requirements of subsection (3) of this
14 section:

15 (a) Outside the corporate limits of a city, village, or
16 unincorporated village if incidental to the vehicle's use for
17 agricultural purposes;

18 (b) Within the corporate limits of a city or village if authorized
19 by the city or village by ordinance adopted in accordance with this
20 section; or

21 (c) Within an unincorporated village if authorized by the county
22 board of the county in which the unincorporated village is located by
23 resolution in accordance with this section.

24 (3)(a) An all-terrain vehicle or a utility-type vehicle may be
25 operated as authorized in subsection (2) of this section when such
26 operation occurs:

27 (i) Between the hours of sunrise and sunset; ~~or~~

28 (ii) Between the hours of sunset and sunrise for purposes of snow
29 removal within the corporate limits of a city or village or within an
30 unincorporated village; or -

31 (iii) Between the hours of sunset and sunrise within the corporate

1 limits of a city or village or within an unincorporated village if:

2 (A) The headlight for the all-terrain vehicle or utility-type
3 vehicle displays a white light and:

4 (I) For multiple beam headlights, the upper beam sufficiently
5 illuminates any person, vehicle, or substantial object at a distance of
6 at least one hundred feet in front of the all-terrain vehicle or utility-
7 type vehicle, and the lowermost beam sufficiently illuminates any person,
8 vehicle, or substantial object at a distance of at least fifty feet in
9 front of the all-terrain vehicle or utility-type vehicle; and

10 (II) For single beam headlights, the headlight sufficiently
11 illuminates any person, vehicle, or substantial object at a distance of
12 at least one hundred feet in front of the all-terrain vehicle or utility-
13 type vehicle, and the high intensity portion of the light does not
14 project higher than the level of the center of the headlight; and

15 (B) The taillight for the all-terrain vehicle or utility-type
16 vehicle displays a red light that is plainly visible from a distance of
17 five hundred feet behind the all-terrain vehicle or utility-type vehicle.

18 (b) Any person operating an all-terrain vehicle or a utility-type
19 vehicle as authorized in subsection (2) of this section shall:

20 (i) Have a valid Class 0 operator's license or a farm permit as
21 provided in section 60-4,126;

22 (ii) Have liability insurance coverage for the all-terrain vehicle
23 or a utility-type vehicle while operating such all-terrain vehicle or
24 utility-type vehicle on a highway; and

25 (iii) Not operate the all-terrain or utility-type vehicle at a speed
26 in excess of thirty miles per hour.

27 (c) The person operating an all-terrain vehicle or a utility-type
28 vehicle shall provide proof of such insurance coverage to any peace
29 officer requesting such proof within five days of such a request.

30 (d) When operating an all-terrain vehicle or a utility-type vehicle
31 as authorized in subsection (2) of this section, the headlight and

1 taillight of the vehicle shall be on and the vehicle shall be equipped
2 with a bicycle safety flag which extends not less than five feet above
3 ground attached to the rear of such vehicle. The bicycle safety flag
4 shall be triangular in shape with an area of not less than thirty square
5 inches and shall be day-glow in color.

6 (4) All-terrain vehicles and utility-type vehicles may be operated
7 without complying with subsection (3) of this section on highways in
8 parades which have been authorized by the State of Nebraska or any
9 department, board, commission, or political subdivision of the state.

10 (5) The crossing of a highway other than a controlled-access highway
11 with more than two marked traffic lanes shall be permitted by an all-
12 terrain vehicle or a utility-type vehicle without complying with
13 subsection (3) of this section only if:

14 (a) The crossing is made at an angle of approximately ninety degrees
15 to the direction of the highway and at a place where no obstruction
16 prevents a quick and safe crossing;

17 (b) The vehicle is brought to a complete stop before crossing the
18 shoulder or roadway of the highway;

19 (c) The operator yields the right-of-way to all oncoming traffic
20 that constitutes an immediate potential hazard;

21 (d) In crossing a divided highway, the crossing is made only at an
22 intersection of such highway with another highway; and

23 (e) Both the headlight and taillight of the vehicle are on when the
24 crossing is made.

25 (6) All-terrain vehicles and utility-type vehicles may be operated
26 outside the corporate limits of any municipality by electric utility
27 personnel within the course of their employment in accordance with the
28 operation requirements of subsection (3) of this section, except that the
29 operation of the vehicle pursuant to this subsection need not be limited
30 to the hours between sunrise and sunset.

31 (7) A city or village may adopt an ordinance authorizing the

1 operation of all-terrain vehicles and utility-type vehicles within the
2 corporate limits of the city or village if the operation is in accordance
3 with subsection (3) of this section. The city or village may place other
4 restrictions on the operation of all-terrain vehicles and utility-type
5 vehicles within its corporate limits.

6 (8) A county board may adopt a resolution authorizing the operation
7 of all-terrain vehicles and utility-type vehicles within any
8 unincorporated village within the county if the operation is in
9 accordance with subsection (3) of this section. The county may place
10 other restrictions on the operation of all-terrain vehicles and utility-
11 type vehicles within the unincorporated village.

12 (9) Except as provided in subsection (10) of this section, the
13 crossing of a controlled-access highway with more than two marked traffic
14 lanes shall be permitted by a utility-type vehicle if the operation is in
15 accordance with the operation requirements of subsection (3) of this
16 section and if the following requirements are met:

17 (a) The crossing is made at an intersection that:

18 (i) Is controlled by a traffic control signal; or

19 (ii) For any intersection located outside the corporate limits of a
20 city or village, is controlled by stop signs;

21 (b) The crossing at such intersection is made in compliance with the
22 traffic control signal or stop signs; and

23 (c) The crossing at such intersection is specifically authorized as
24 follows:

25 (i) If such intersection is located within the corporate limits of a
26 city or village, by ordinance of such city or village;

27 (ii) If such intersection is located within an unincorporated
28 village, by resolution of the county board of the county in which such
29 unincorporated village is located; or

30 (iii) If such intersection is located outside the corporate limits
31 of a city or village and outside any unincorporated village, by

1 resolution of the county board of the county in which such intersection
2 is located.

3 (10) When the use of the all-terrain vehicle or utility-type vehicle
4 is for an agricultural purpose, the crossing of a controlled-access
5 highway with more than two marked traffic lanes shall be permitted if
6 such vehicle is operated in accordance with subsection (3) of this
7 section.

8 **Sec. 2.** Original section 60-6,356, Revised Statutes Supplement,
9 2025, is repealed.